

Getting FLC licensed for retaining walls

What we need to do, what it costs, and what Alistair gets paid.

01 Where we stand

Any retaining wall job over **\$3,300** legally needs a QBCC licence. FLC doesn't have one. Alistair has one, but it's **his personally** — a personal licence doesn't cover the company.

To get FLC its own licence we have to **employ Alistair** as our licensed builder. That's the law, not a preference: a company licence requires a licensed builder who is a director, secretary or employee. A subcontractor doesn't count.

ONE THING TO FIX TODAY

Our website, quotes and socials show “**QBCC #76041**”. That's **Alistair's personal licence number, not ours**. Advertising someone else's licence as the company's is a breach by itself — separate from everything below. **Take it down now**; it costs nothing and it stops the problem growing.

UNTIL THE LICENCE IS ISSUED

We can't quote, sign or start any retaining wall over \$3,300. Working unlicensed risks a fine around \$43,000 — and worse, an unlicensed contractor **can't legally be paid** for the job.

02 What we're asking you to approve

#	DECISION
1	Apply for FLC's own QBCC licence — aiming for the trade class, so we need \$12,000 in the company rather than \$46,000
2	Employ Alistair as a casual employee — required by law to get the licence
3	Pay him 5% of each wall , covering his wages and super
4	Keep about \$16,000–\$24,000 of profit in the company instead of drawing it
5	Take no wall work over \$3,300 until the licence comes through

03 The deal with Alistair

Employment	Casual — job by job, no commitment either way
What he's paid	5% of each job, covering wages and super
Hourly rate	\$70/hr — the legal backstop, not the real pay
His time per wall	A desk check before we quote, plus 2 site visits ≈ 4.5 hours
Travel	Not paid time — covered by the rate, plus a per-km allowance
His main job	Tell us <i>before we quote</i> whether a wall is inside our licence and needs no engineer
What he doesn't do	He does not certify walls — an engineer does that

WHY AN HOURLY RATE AT ALL

The law says you must pay an employee for their time. So we pay him \$70/hr as he works, then top him up to the full 5% when the job finishes. **He gets 5%.**

The hourly rate is just paperwork that keeps us both safe.

04 What Alistair gets paid, by job value

JOB VALUE EX GST	HE GETS (5%)	PAID AS HE WORKS	TOP-UP AT THE END	OF WHICH SUPER
\$10,000	\$500	\$315	\$131	\$54
\$11,000	\$550	\$315	\$176	\$59
\$12,000	\$600	\$315	\$221	\$64
\$13,000	\$650	\$315	\$265	\$70
\$14,000	\$700	\$315	\$310	\$75
\$15,000	\$750	\$315	\$355	\$80
\$16,000	\$800	\$315	\$399	\$86
\$17,000	\$850	\$315	\$444	\$91
\$18,000	\$900	\$315	\$489	\$96
\$19,000	\$950	\$315	\$533	\$102
\$20,000	\$1,000	\$315	\$578	\$107

JOB VALUE EX GST	HE GETS (5%)	PAID AS HE WORKS	TOP-UP AT THE END	OF WHICH SUPER
\$21,000	\$1,050	\$315	\$622	\$113
\$22,000	\$1,100	\$315	\$667	\$118
\$23,000	\$1,150	\$315	\$712	\$123
\$24,000	\$1,200	\$315	\$756	\$129
\$25,000	\$1,250	\$315	\$801	\$134
\$26,000	\$1,300	\$315	\$846	\$139
\$27,000	\$1,350	\$315	\$890	\$145
\$28,000	\$1,400	\$315	\$935	\$150
\$29,000	\$1,450	\$315	\$980	\$155
\$30,000	\$1,500	\$315	\$1,024	\$161

Reading a row. An \$18,000 wall costs us **\$900** all up for Alistair. He gets \$315 as he works his 4.5 hours, then a **\$489 top-up** when the job finishes. \$96 of the \$900 goes to his super.

TWO THINGS TO REMEMBER WHEN PRICING

Add roughly **\$25–\$55 per job** for WorkCover, so budget about **5.5%** all in.
And if a job drags on, every extra hour of his time adds **\$78** and eats into the top-up.

05 One decision that's worth \$34,000

Alistair's licence is a **Contractor Licence, Builder — Low Rise, number 76041, expiring 16/03/27**.

QBCC won't licence a company unless it holds a minimum amount of its own money, and **how much depends on which licence we apply for**:

IF FLC'S LICENCE IS...	MONEY WE MUST HOLD
Structural landscaping (trade)	\$12,000
A builder class, matching Alistair's	\$46,000

WHAT WE SHOULD DO

Ask Alistair to add “Structural landscaping (trade)” to his own licence — it costs him **\$250–\$500** — then FLC applies for that same licence and only needs **\$12,000** in the company instead of \$46,000.

Confirm it with QBCC on the call before anyone lodges anything.

06 What it costs to set up

ITEM	COST
QBCC licence application (fee + first year)	\$1,402.83
Yearly renewal after that	~\$670
Lawyer to check the employment agreement	~\$500–\$1,500
WorkCover policy for Alistair	small, based on wages
Everything else — forms, QLeave, financial declaration	\$0

So roughly **\$2,000–\$3,000** to get set up, most of it one-off.

07 The money that has to sit in the company

QBCC won't licence a company unless it holds a minimum amount of its own money. For our size that's:

\$12,000 Must be in the company	\$16k–\$24k Profit to keep back to get there	\$200,000 Revenue cap at this level
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It's more than \$12,000 because tax takes a cut, and because we want a buffer — if the figure drops too far below what we told QBCC, we're forced into a paid accountant's report.

THE TRADE-OFF TO DECIDE

Keeping profit back costs nothing but takes a quarter or two — and we can't take wall work in the meantime. **Putting \$12k–\$20k in as a director loan or equity** gets us licensed straight away. If there's wall work we want now, that's the better call.

08 What happens next

#	STEP
1	Take licence 76041 off the website, quotes, email footers, socials and signage — today. It's Alistair's personal licence, not FLC's, and showing it as ours is a breach on its own.
2	Diarise 16 March 2027 — Alistair's licence expires then. If it lapses we have no licensed builder.
3	Ring QBCC on 139 333 — “ <i>Our nominee holds Contractor Licence 76041, Builder — Low Rise. Does that cover retaining walls, and can he nominate for a Structural landscaping (trade) company licence so we sit in SC1?</i> ” Also ask about home warranty insurance on standalone walls, and what counts toward the revenue cap.
4	Build the \$12,000 in the company, or decide to put it in.
5	Get the employment agreement checked by a lawyer and signed — we can start this now, it isn't waiting on anything.
6	Lodge the licence application — application form — then the nominee form naming Alistair.
7	Set up payroll, WorkCover and QLeave before the first job.

Step 1 costs nothing and takes ten minutes. Steps 2 and 3 take an afternoon, and everything else depends on those answers.

09 Three things we have to get right

Alistair has to actually supervise	He signs a short record at every site visit. If he signs off walls he never looked at, that's an offence for both of us and both licences are at risk.
Stepped walls aren't small walls	Two 800mm walls up a slope push against each other and need an engineer. Alistair checks this <i>before we quote</i> .
He stays off the tools	He's there to supervise. If he starts working on the walls, different employment rules kick in and the 5% deal stops working.

Prepared August 2026. This is a plain-English summary — the full detail, sources and the draft employment agreement sit behind it. **Not legal advice:** a Queensland construction lawyer should review the agreement before anyone signs.